

Court No. - 3

Case :- WRIT - C No. - 13057 of 2022

Petitioner :- Deep Narayan Dubey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Akhilesh Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Ashutosh Srivastava,J.

Learned counsel for the petitioner submits that demand creating electricity dues has been raised by the Respondent No.3 against the petitioner without affording any opportunity to the petitioner.

Sri Narendra Kumar Tiwari, learned counsel for the Respondent No.3 prays for and is granted three days time to obtain instructions.

Put up as a **fresh case** before the appropriate Bench on **11.05.2022.**

Order Date :- 7.5.2022

pks

Court No. - 29

Case :- WRIT - C No. - 13057 of 2022

Petitioner :- Deep Narayan Dubey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Akhilesh Kumar

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

Counsel for respondent to seek instructions.

List this case in the week commencing 16.8.2022, as fresh.

In the meanwhile, if he so desires, may file short counter.

Order Date :- 29.7.2022

Ravi Prakash

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, J.)

Court No. - 3

Case :- WRIT - C No. - 13057 of 2022

Petitioner :- Deep Narayan Dubey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Akhilesh Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard Sri Akhilesh Kumar, learned counsels for the petitioner, learned standing counsel for the State - respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent No.3/ Power Distribution Corporation,

This writ petition has been filed praying for the following relief:

"Issue a writ, order or direction in the nature of certiorari to quash the impugned recovery certificate dated 03.03.2022 issued by the Tehsildar Tehsil Fatehpur District Fatehpur /respondent no. 2 (Annexure no. 1 to this writ petition)."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 16.8.2022/vkg